

HOUSE No. 398

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to disclosure notice in the right to repair motor vehicle data law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/14/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/10/2025</i>

HOUSE No. 398

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 398) of Steven S. Howitt and Lindsay N. Sabadosa relative to disclosure notice in the right to repair motor vehicle data law. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 329 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to disclosure notice in the right to repair motor vehicle data law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2 of Chapter 93K of the General Laws, as most recently amended by Section 4 of
2 Chapter 386 of the Acts of 2022, is hereby amended by striking subsections (g) and (h) and
3 inserting in place thereof the following subsection (g):-

4 (g) The Attorney General is hereby directed to establish a motor vehicle telematics
5 system notice which a vehicle manufacturer shall include in the owner's manual provided for its
6 new motor vehicles beginning with model year 2026 vehicles and which shall include the
7 following information: (i) an explanation of motor vehicle telematics and its purposes; (ii) a
8 description summarizing the mechanical data collected, stored, and transmitted by a telematics
9 system; (iii) the prospective owner's ability to access the vehicle's mechanical data through a

- 10 mobile device; and (iv) an owner's right to authorize an independent repair facility to access the
- 11 vehicle's mechanical data for vehicle diagnostics, repair, and maintenance purposes.